Software Services Agreement

This agreement is for demonstration purposes only. Not legally binding.

PARTIES

Acme Corp Ltd.
("Client")
12 Business Park, Bengaluru
Karnataka 560001, India
CIN: U72900KA2019PTC123456

TechServe Solutions Pvt. Ltd.
("Service Provider")
77 Startup Hub, Hyderabad
Telangana 500081, India
CIN: U62099TG2017PTC110987

EFFECTIVE DATE
1 July 2026

TERM
12 months (auto-renews unless terminated with 30 days notice)

1. Scope of Services

Service Provider agrees to design, develop, and deliver the following services to Client during the Term of this Agreement:

- Custom web application development using React and Node.js
- Cloud infrastructure setup and management (AWS / GCP)
- API integration with third-party platforms as specified in Schedule A
- Monthly progress reports and weekly status calls
- Bug fixes and maintenance within the scope defined in Schedule B

Any services outside the above scope shall be treated as Change Requests under Section 5 and will be separately agreed upon in writing.

2. Fees & Payment Terms

Milestone	Due Date	Amount (excl. GST)	GST @ 18%
Project Kick-off	1 Jul 2026	₹2,00,000	₹36,000
Design Sign-off	15 Jul 2026	₹1,50,000	₹27,000
Beta Delivery	31 Aug 2026	₹2,50,000	₹45,000
Final Delivery	30 Sep 2026	₹2,00,000	₹36,000
Support (monthly)	Oct–Jun	₹60,000	₹10,800

Total contract value (incl. GST): **₹11,70,800**

Invoices are payable within 15 days of issuance. Late payments attract interest at 1.5% per month. All payments shall be made via NEFT/RTGS to the bank details provided in Schedule C.

3. Intellectual Property

3.1 Upon receipt of full payment for each milestone, Service Provider assigns to Client all rights, title, and interest in the deliverables produced specifically for Client under this Agreement ("Work Product"), including all copyrights.

3.2 Service Provider retains all rights to its pre-existing tools, frameworks, libraries, and general methodologies ("Background IP"). Client is granted a non-exclusive, perpetual, royalty-free licence to use Background IP solely to the extent embedded in the Work Product.

3.3 Service Provider shall not use Client's name, logo, or brand for marketing purposes without prior written consent.

4. Confidentiality

Each party agrees to hold the other's Confidential Information in strict confidence and not to disclose it to

6. Warranties & Limitation of Liability

6.1 Service Provider warrants that: (a) the Work Product will be free from material defects for 90 days after delivery; (b) it has the right to enter this Agreement; and (c) the Work Product will not infringe any third-party intellectual property rights.

6.2 NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, OR SPECIAL DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

6.3 Service Provider's total cumulative liability under this Agreement shall not exceed the total fees paid by Client in the three months immediately preceding the event giving rise to the claim.

7. Termination

7.1 Either party may terminate this Agreement for convenience by giving 30 days' written notice.

7.2 Either party may terminate immediately upon written notice if the other party: (a) commits a material breach that is not cured within 15 days of notice; (b) becomes insolvent or enters liquidation; or (c) is found guilty of fraud or wilful misconduct.

7.3 Upon termination, Client shall pay for all work completed and accepted prior to the effective date of termination. Service Provider shall deliver all Work Product for which payment has been received.

8. Dispute Resolution & Governing Law

The parties shall first attempt to resolve any dispute through good-faith negotiation for 30 days. If unresolved, disputes shall be submitted to binding arbitration under the Arbitration and Conciliation Act, 1996 (India), with a sole arbitrator seated in Bengaluru. The governing law shall be the laws of India. The courts of Bengaluru shall have exclusive jurisdiction for interim relief.

9. General Provisions

- Entire Agreement: This Agreement (including its Schedules) constitutes the entire agreement between the parties and supersedes all prior negotiations.
- Amendments: Any modification must be in writing and signed by authorised representatives of both parties.
- Assignment: Neither party may assign its rights or obligations without the other's prior written consent, except in the event of a merger or acquisition.
- Severability: If any provision is found unenforceable, the remaining provisions continue in full force.
- Waiver: Failure to enforce any provision is not a waiver of future enforcement.

SIGNATURES

By signing below, each party agrees to be bound by the terms of this Agreement as of the Effective Date.

Acme Corp Ltd. ("Client")

Authorised Signature

Name (Print):

Title:

Date:

TechServe Solutions Pvt. Ltd. ("Service Provider")

Authorised Signature

Name (Print):

Title:

Date: